

NATIONAL EDUCATIONAL ASSESSMENT AND EXAMINATIONS AGENCY
(NEAEA)
NATIONAL EXIT EXAMINATION FOR LL.B PROGRAM STUDENTS OF
ETHIOPIAN LAW SCHOOLS
ACADEMIC YEAR 2020/21

04 August, 2021
Time Allowed: 3:00 Hours

PART II: PUBLIC LAWS

INSTRUCTIONS:

1. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
 2. LAWS THAT CAN BE BROUGHT TO THE EXAM ROOM ARE:
 - a. THE UN CHARTER,
 - b. THE FDRE CONSTITUTION,
 - c. THE CRIMINAL CODE,
 - d. THE INCOME TAX PROCLAMATIONS,
 - e. THE VAT PROCLAMATION, AND
 - f. THE EIA PROCLAMATION.
 3. WHENEVER APPROPRIATE, BUTTRESS YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS.
 4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.
 5. WRITE LEGIBLY.
 6. DO NOT BRING YOUR MOBILE PHONE INTO THE EXAM HALL.
- DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO.**

SECTION I: MULTIPLE CHOICES (30 MARKS)

CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN.

1. According to the Ethiopian Constitution, states have exclusive power to:
- A. enact criminal law.
 - B. appoint their presidents.
 - C. protect the federal constitution.
 - D. regulate their trade with other states.
 - E. formulate economic policies.

Which one of the following is **NOT** a feature of consociational democracy?

- A. Proportional representation of groups in key public positions.
- B. Executive power sharing.
- C. Election by plurality of votes.
- D. Cultural autonomy.
- E. mutual veto power.

Which one is true about constitutional review models?

- A. Abstract review arises in relation to court cases between antagonistic parties.
- B. Countries with diffused review model use a constitutional court system.
- C. Courts can nullify legislative acts in decentralized review systems.
- D. Most European countries adopted the decentralized review model.
- E. In the decentralized model, courts lack the power to invalidate the laws of parliament.

Which one of the following statements best describes a federal system?

- A. It advocates a multi-tiered government system combining elements of shared rule and self-rule.
- B. It constitutes the institutional and structural techniques for achieving one of the goals of federalism.
- C. There could be a federal system without some matching variety of federalism.
- D. It is a normative principle that perpetuates both union and non-centralization.
- E. It represents a multi-tiered government wherein constituent units are subordinate to the center.

5. Cooperative federalism is criticized by many because
 - A. it does not give equal prerogative to all member states of the federation.
 - B. it gives each level of government power to control its respective executive organ.
 - C. it results in the establishment of a unitary system in the end.
 - D. it results in a democratic deficit by blurring accountability.
 - E. it affects the federal process since it makes the center stronger than the states.

6. Which statement justifies why the responsibility to interpret the constitution is given to the House of the Federation in Ethiopia?
 - A. This is a common practice in other federations, too.
 - B. This is a complementary power since the House lacks law-making power,
 - C. It is associated with the federal formation that Ethiopia follows.
 - D. The nature of the constitution in general and the roles of the nation, nationality and people in particular.
 - E. To ensure the supremacy of the House over other federal government institutions.

7. Which statement justifies why constitutional interpretation is given to the House of the Federation in Ethiopia?
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Which of the following comes first in the realization of the object and purpose of criminal law?

- A. Providing for punishment of criminals
- B. Giving due notice of the crimes and penalties prescribed by law
- C. Imposing swift and proportional punishment against offenders
- D. Making prisons rehabilitative institutions
- E. Suspending execution of penalties

9. Which of the following is a type of deterrence based on the idea that the individual offender will be discouraged from criminality by experiencing criminal punishment?
- A. Incapacitation
 - B. General deterrence
 - C. Rehabilitation
 - D. Specific deterrence
 - E. Restoration
10. Which one of the following best describes a Dolus Eventualis (indirect intention) state of mind?
- A. If the offender knows the circumstances of his act and desires to bring the harm, then his state of mind is indirect intention.
 - B. The offender is in dolus eventualis state of mind when he knows his act could cause harm and he does not want such consequence to follow.
 - C. In dolus eventualis, since the criminal does not desire, he does not accept the occurrence of possible harm as a result of his own act.
 - D. The offender is in dolus eventualis state of mind when he has a fixed objective of bringing the harm done, a clear foresight of the consequence and desires the result.
 - E. The offender is in dolus eventualis state of mind if he is certain that harm will ensue but he proceeds with his action, anyway.
1. Identify the correct statement.
- A. Criminalizing a behavior by interpreting criminal law is not prohibited under FDRE criminal code.
 - B. Punishing an offender by more than one type of punishment is an example of double jeopardy.
 - C. Criminal law prohibits its retroactive application in all situations.
 - D. Retroactive application of criminal law is possible if a new law benefits the offender.
 - E. Determining the retroactive application of criminal law is within the discretion of courts.

12. Which of the following is true pursuant to the Ethiopian Criminal Code?
- A. Responsibility is not presumed.
 - B. The court cannot, on its own motion, call experts in order to ascertain criminal irresponsibility even when circumstances so justify.
 - C. Loss of volition or cognition due to mental disease can lead to criminal irresponsibility.
 - D. Loss of volition or cognition due to mental disease cannot lead to criminal irresponsibility.
 - E. Issues of loss of cognitive and volitional powers are not treated in the Criminal Code.
13. Which one of the following penalties does not apply to young offenders?
- A. Fine
 - B. Imprisonment
 - C. Death penalty
 - D. Home arrest
 - E. Detention
14. Which of the following characterizes the early period in the development of international environmental law?
- A. Environmental issues were addressed primarily through bilateral agreements and the laws and regulations adopted by each State at national level.
 - B. Widespread global environmental problems and strong cooperation among States to address the problems.
 - C. Known for multilateral treaties that focused on global environmental issues and protection of the environment as an international concern.
 - D. High level of awareness and scientific knowledge about environmental problems and damage that informed the adoption of global environmental treaties.
 - E. Well-established environmental activism and advocacy that convinced the world to adopt several global environmental treaties.

Which of the following is a pair of closely interrelated principles of environmental law?

- A. "No Harm" and "Polluter Pays".
- B. "Sustainable Development" and "Precautionary Approach".
- C. "Integration" and "Environmental Impact Assessment".
- D. "Common but Differentiated Responsibility" and "Common Heritage of Humankind".
- E. "No Harm" and "Common Heritage of Humankind".

Which of the following legal remedies best serves the purpose advanced by the "Prevention" principle of environmental law?

- A. Injunction
- B. Restitution
- C. Abatement
- D. Compensation for damage
- E. Criminal punishment

Which of the following provides "*Public Participation*" as one of its core components and allows direct participation by the public in decision-making?

- A. Environmental Impact Assessment
- B. Polluter Pays Principle
- C. Precautionary Approach
- D. Public Interest Litigation
- E. Common but Differentiated Responsibility

Which one of the following is **NOT** true regarding treaty invalidation?

- A. A treaty can be invalidated if it is made under intimidation or threat.
- B. A treaty can be invalidated if it is manifestly ultra-virus.
- C. A treaty can be invalidated if it is impossible to perform.
- D. A treaty can be invalidated if there is a fundamental mistake about the object thereof.
- E. A treaty can be invalidated if there is a fundamental change of circumstances.

19. One of the following is true about the formation of International Organizations.
- A. They are established only by states members of the international community.
 - B. After their establishment, international organizations seek the consent of member states to perform their designated duties.
 - C. International organizations are established on the basis of treaties which can be their constitutive documents.
 - D. The establishment documents of international organizations can be governed by domestic legislation.
 - E. Most international organizations are established with more powers than the states that have established them.
20. Which one of the following is true about International Court of justice (ICJ)?
- A. ICJ has jurisdiction of entertaining all cases presented by member states of UN.
 - B. ICJ can automatically assume jurisdiction devoid of the consent of disputing states.
 - C. ICJ can give advisory opinion if requested by organs of United Nations provided that the issue is under their competence.
 - D. ICJ can entertain cases presented from non- members of the United Nations automatically.
 - E. ICJ can entertain cases presented from all international organizations.
21. One of the following is **NOT** the constitutive elements of statehood.
- A. Permanent population
 - B. A more or less defined territory
 - C. Sovereignty
 - D. A government having a control over the people and the territory
 - E. Capacity to enter into international arrangements
22. Which statement is correct?
- A. Tax laws have retroactive application.
 - B. Ethiopia has income tax jurisdiction only on its resident.
 - C. Gross income is the amount of income on which actual income is charged, levied and collected after all deductions have been made.
 - D. Tax may affect the property rights of individuals.
 - E. Efficient tax system may result in government budget deficit.

23. Income tax is payable on
- A. Earned income.
 - B. Every income.
 - C. Taxable income.
 - D. Aggregate income.
 - E. Selected income.
24. The following are objectives of taxation by the Government **EXCEPT**
- A. raising revenue for the state.
 - B. maintaining economic stability.
 - C. reducing inequalities in income and wealth.
 - D. ensuring price stability.
 - E. stepping up public investments only.
25. Which of the following is **NOT** correct about Value Added Tax (VAT)?
- A. VAT is a multi-stage tax.
 - B. VAT is paid on the total value of the goods and services.
 - C. There is no cascading effect of tax in VAT.
 - D. VAT is not defined under the VAT proclamation.
 - E. VAT is a form of indirect taxation.
26. A good tax system is efficient when
- A. there is flexibility and certainty in the tax system.
 - B. it needs lots of money and resource for its operation.
 - C. it changes consumer behavior that they buy less of taxed goods and more of other goods.
 - D. the cost of collecting a tax is greater in relation to the amount collected.
 - E. the tax system need not be simple.
27. Taxpayers who are not voluntarily or obligatorily registered for VAT shall pay
- A. Custom duty tax.
 - B. Income tax.
 - C. Excise tax.
 - D. Turnover tax.
 - E. Stamp duty tax.

28. What was the first human rights instrument adopted by the United Nations?
- A. The Convention on the Rights of the Child
 - B. The International Convention on the Protection of All Migrant Workers and Members of Their Families
 - C. International Convention on the Elimination of All Forms of Racial Discrimination (ICERD)
 - D. Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT)
 - E. Universal Declaration of Human Rights (UDHR)
29. When is Human Rights Day observed each year?
- A. 10th of December each year
 - B. 15th of February each year
 - C. 10th of January each year
 - D. 15th of March each year
 - E. 10th of September each year
30. The enforcement mechanism of the International Covenant on Economic, Social and Cultural Rights (ICESCR) consists of
- A. a reporting mechanism only.
 - B. a reporting mechanism and the right to individual petition.
 - C. a right to individual petition only.
 - D. inter-state complaints only.
 - E. Inquiry procedure only.

SECTION II: MATCHING (10 Marks)

CHOOSE THE BEST MATCH FOR THE ITEMS UNDER "A" FROM THE ITEMS UNDER "B".

A

1. Created by formerly independent states
2. Separation of state and religion
3. Federal exclusive power in most federations
4. Decentralized form of government
5. Blind or passive obedience
6. Negative defense
7. Assimilating official's act with state's act
8. Targeting non-combatants
9. Unearned or unexpected gains
10. Statements to exclude legal effects of a treaty

B

- A. Reservations
- B. windfall profit
- C. Irresponsibility
- D. Coming together federalism
- E. Intelligent Infantry
- F. Secularism
- G. Accession
- H. Lawful acts
- I. Fusion of power
- J. Imputability
- K. Subordinating states to the center
- L. Foreign relations
- M. Employment Income
- N. Terrorism
- O. Superior order

SECTION III: SHORT ANSWER QUESTIONS (10 Marks)
GIVE SHORT ANSWERS TO THE FOLLOWING QUESTIONS.

- 3.1. List the merits of introducing a federal political system in a given polity. (5 Marks)
- 3.2. Mention the difference between 'tax evasion' and 'tax avoidance'. (5 Marks)

SECTION IV: ESSAY PART (20 Marks)
WRITE SHORT ESSAY FOR THE FOLLOWING QUESTIONS.

- 4.1. Write a short essay of **not more than 20 lines** discussing the roles of human rights in development in relation to Ethiopia. In your essay, touch upon the synergy or marriage, if any, between development and human rights in Ethiopia. (10 Marks)
- 4.2. Write an essay of not more than **20 lines** explaining how the rights to "*Access to Information*" and "*Public Participation*" are interdependent environmental rights. (10 Marks)

SECTION V: HYPOTHETICAL CASES (30 Marks)
READ THE FOLLOWING CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

5.1. Case One (15 Marks)

Assume that State XY is one of the ten states that make up the Ethiopian federation. Because of the recurring and pervasive ethnic conflicts and the coronavirus outbreak in Ethiopia, State XY's economic growth showed a decline in recent years. In an effort to revive its economy, the State adopted policies and laws with the view to foster intra-state, inter-state and international trade. Consequently, the State signed a bilateral treaty with neighboring Kenya. According to the treaty, the parties agreed to remove all tariffs on the import and export goods between them. However, the treaty contradicted with the relevant federal proclamation causing friction between the federal government and the concerned state authorities. Now, the federal authorities are seeking your advice on how to challenge the constitutionality of the treaty. **What would you advise them to do?**

5.2. Case Two (15 Marks)

Chuchu and Nunu, students at one of Ethiopian Art Schools in Ethiopia, argued with a fellow student, Firtuna, about loud music emanating from her room at night. While waiting to go into a lecture theatre the next day, Chuchu complained to her friend, Yigermal, about Firtuna's behaviour and said that if Yigermal were to drown Firtuna in the nearby lake, it would be a good thing. Yigermal told Chuchu that if Firtuna bothered him as well he would certainly make sure she never did it again. After the lecture, Nunu talked to her friend, Gulbe, whom she knew for sometime, and who enjoys getting into fights. Nunu said to her, 'If you think you're tough, put Firtuna in hospital so she stops disturbing my sleep!'

Late that evening, Yigermal went to Chuchu's room. They agreed that if Firtuna started playing her music loudly again, Yigermal would go and threaten her with a knife that Chuchu had found in the kitchen, using it to stab Firtuna 'if necessary.' Unknown to either of them, the knife was blunt and the blade was of very poor quality. After waiting for several hours without the music starting, Chuchu became angry and said to Yigermal, 'If you don't go and deal with Firtuna right now, I'll report you for cheating in your assessed essays and I'll push you under a bus tomorrow!' Yigermal then left Chuchu's room and knocked on Firtuna's door. When Firtuna opened the door, Yigermal tried to attack her with the knife but slipped over and fell on the floor, missing Firtuna.

The next day, Gulbe went looking for Firtuna. Gulbe's plan was to provoke an argument so as to have a pretext for hitting Firtuna. At lunch time, Gulbe saw Firtuna on the other side of the cafeteria and started walking towards her to carry out her plan, but halfway across the room a lecturer stopped Gulbe to congratulate her for her excellent essay on the psychology of memory. Gulbe then forgot all about Firtuna and went home.

Discuss the criminal liability, if any, of Chuchu, Nunu, Yigermal and Gulbe.

THE END